

HOUSE No. 4643

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 21, 2025.

The committee on Ways and Means, to whom was referred the Bill authorizing the Massachusetts Department of Transportation to convey a certain parcel of land in the town of Stoneham (House, No. 3312), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 4643).

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the Massachusetts Department of Transportation to convey a certain parcel of land in the town of Stoneham.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to provide forthwith a conveyance of land in the town of Stoneham, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 7E of chapter 81 of the General Laws, or any
2 other general or special law to the contrary, the secretary of transportation may convey to
3 Wakefield Investments, Inc. a certain parcel of land in the town of Stoneham owned by the
4 Massachusetts Department of Transportation and taken for highway purposes in 1958 under
5 Highway Layout 4724, for the purposes of reconstructing an off-ramp from the Interstate 93
6 northbound to Montvale avenue and Maple street.

7 (b) The parcel of land to be conveyed pursuant to subsection (a) is described as the
8 property situated in the town of Stoneham, herein known as a portion of Parcel 2-31, which is
9 landlocked to the abutting property owner at 100 Maple street, and described in an order of
10 taking, dated September 23, 1958 and recorded in the Middlesex south registry of deeds in book
11 9244, page 114, containing 12,500 square feet of land, more or less.

SECTION 2. The consideration for the conveyance described in section 1 shall be the full and fair market value of the parcel as determined by the secretary of transportation based upon an independent professional appraisal pursuant to section 4. Said parcel shall be conveyed in its present condition, including as is, where is and with all faults, through the Massachusetts Department of Transportation's standard form release deed.

SECTION 3. Notwithstanding any general or special law to the contrary, Wakefield Investments, Inc., of Wakefield, Massachusetts, shall be responsible for all of costs and expenses related to the conveyance authorized in section 1, including, but not limited to, costs associated with any engineering, surveys, layout alterations, recording costs, appraisals and deed preparation related to the conveyance authorized in section 1 as such costs may be determined by the secretary of transportation.

SECTION 4. An independent appraisal or appraisals of the fair market value of the parcel described in section 1 shall be prepared in accordance with the usual and customary professional appraisal practices by a qualified appraiser commissioned by the Massachusetts Department of Transportation. The secretary of transportation shall submit the appraisals to the inspector general for review and comment. The inspector general shall review and approve the appraisals and the review shall include an examination of the methodology utilized for the appraisals. The inspector general shall prepare a report and file the report with the secretary of transportation. After receiving the report, the secretary of transportation shall submit copies of the report to the house and senate committees on ways and means and the joint committee on state administration and regulatory oversight not later than 15 days prior to the execution of documents affecting the conveyance authorized in section 1.